



File No: EXP202414147

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 7, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against EDA TV CONSULTING, S.L. (hereinafter, EDA TV), through the agreement transcribed below:

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Procedure No: EXP202414147 (PS/00444/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

FACTS

FIRST: On 05/03/24, A.A.A. (the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity, EDA TV CONSULTING, S.L. with NIF: B88605266, owner of the website <https://edatv.news/> (hereinafter, the defendant), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In their complaint, they state, among other issues, that the website <https://edatv.news/> does not comply with the requirements established in the current regulations regarding the "Cookie Policy."

SECOND: On 17/04/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the defendant for analysis and to report back within one month on the matters raised in the complaint.

THIRD: On 22/05/24, this Agency received a written response from the defendant in which, among other issues, they state regarding the "Cookie Policy" of their website the following:

"(...) Regarding cookies, the fact that on the first visit and before accepting or rejecting cookies, the Google Analytics tracking cookies are already installed. Likewise, even if cookies are expressly rejected, Google Analytics cookies continue to be installed. EDA TV has two technological providers for the management and maintenance of the website and the use of cookies (specifically, the provider TOOOLS manages the website www.edatv.com and the provider TRIVIUM manages the website www.edatv.news).

The convergence of these two providers in the provision of their maintenance and management services for each of the aforementioned websites has caused a misalignment in the configuration of both portals during a period (which coincided with the time of filing the complaint by this user), resulting in the situation where, despite the existence of a cookie acceptance and rejection banner that complied with the instructions of the AEPD as outlined in its latest Guide on the use of Cookies published in January 2024, cookies were downloaded to users' devices without their express acceptance or even downloaded when expressly rejected.

This misalignment has already been resolved, and currently, cookies are not downloaded to users' devices without their prior express acceptance. Likewise, it can be observed in this screenshot that on the website www.edatv.news cookies are currently also not downloaded to users' devices without their prior and express consent.

5. And, finally, the fact that cookies are used without adequately obtaining users' consent, with the existence of a paywall being verified. In the AEPD's Guide on the use of Cookies published in January 2024, it is regulated in point 3.2.10. "Possibility of denying access to the service in case of rejection of cookies," the following: "Following the guidelines of the EDPB on consent, for consent to be given freely, access to services and functionalities must not be conditioned on the user's acceptance of the

use of cookies. Therefore, so-called 'cookie walls' that do not offer an alternative to consent cannot be used, as explained below.

This criterion is particularly important in cases where denial of access would prevent the exercise of a legally recognized right by the user, as access to a website may be the only means provided to the user to exercise such a right.

There may be certain cases where the non-acceptance of the use of cookies prevents access to the website or the total or partial use of the service, as long as the user is adequately informed about this and an alternative is offered, not necessarily free, to access the service without the need to accept the use of cookies. As established by the EDPB Guidelines 05/2020 on consent, the services of both alternatives must be genuinely equivalent, and it will not be valid for the equivalent service to be offered by an entity unrelated to the publisher.”

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Considering the above, the AEPD itself, in its Guide on the instructions that website owners must follow regarding the web implementation of cookies published earlier this year, allowed the possibility that, as an alternative method to the non-acceptance of the use of cookies, they could offer users a paid alternative (“not necessarily free”) that would allow users to access the site’s services without necessarily accepting them. Therefore, the cookie notice currently enabled on www.edatv.news is perfectly lawful and complies with the requirements established by the AEPD in the previously referred text.

In this regard, and for purely clarifying purposes, we find it important to highlight that, while this party is aware that the AEPD has published a new update of this Guide this same month of May 2024, where this possibility of including a paid option in the cookie rejection alternative is largely restricted, the text of the January 2024 Guide is the one that would apply to this specific case since the new update of May 2024 was not even published at the time this user filed the complaint with the AEPD (i.e., in March 2024).

FOURTH: On 05/06/24, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FIFTH: On 06/11/24, this Agency obtained and processed the following characteristics of the “Cookie Policy” of the website <https://edatv.news/>:

a.- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used:

Technical or necessary cookies:

Cookies

Domain

Description

didomi_token

edatv.news

Used to store the user's consent preferences to manage cookies and other tracking technologies.

b.- Regarding the cookie information banner on the first layer:

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Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears with the

following message:

EDATV.NEWS

Accept to read for free and without limits

If you accept our cookie policy, you help us provide you with content and advertising tailored to your preferences.

<>

<>

Access through payment is provided by an external provider to this medium, in accordance with its own legal conditions. Advertising cookies or content personalization cookies will not be used unless expressly activated, although we will use analytical cookies to obtain anonymous statistics and other cookies exempt from consent. The spaces would include advertising without the processing of personal data.

<>

Options regarding the use of cookies:

a).- If you do not wish to give consent to the installation of non-technical cookies:

If the user does not want non-technical or necessary cookies to be installed on their terminal equipment, the only option they have is to click on <>, which requires them to register and pay a monthly fee:

“...Access through payment is provided by an external provider to this medium, in accordance with its own legal conditions. Advertising cookies or content personalization cookies will not be used unless expressly activated...”

If this option is clicked, the website displays a form where the user must enter their email address and phone number, as well as the identifying details of the credit card to create an account and log in.

b).- If you wish to give consent to the installation of non-technical cookies:

If you choose to give consent to the use of cookies that are not technical or necessary by clicking on the <> option, it is verified that the website begins to use its own and third-party cookies that are not technical or necessary:

“...If you accept our cookie policy, you help us provide you with content and advertising tailored to your preferences.

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<>...”

c).- Provision of consent for the installation of non-technical or necessary cookies through the control panel:

If you choose to manage cookies granularly by clicking on the <> option, a control panel is displayed where it is observed that the cookie groups are not pre-checked in any of the options.

If now, in the control panel, you choose not to consent to the use of cookies that are not of a technical nature by clicking on the <> option without having selected any of the cookie groups, it is verified that the website re-displays the initial banner with the options indicated previously, now observing that the website begins to use the cookie named “euroconsent-v2” of a technical nature, whose purpose is to store the user's consent preferences.

c.- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

If the user has given initial consent for the website to use cookies that are of a technical or necessary nature by clicking on the <> option present in the initial banner, it is verified that the website begins to use other first-party and third-party cookies, apart from those initially detected.

Now, if at a certain moment during web browsing, you wish to modify the consent, there is NO possibility to access the cookie control panel again to modify the consent.

In this regard, the information provided in the “Cookie Policy” of the website,

<https://edatv.news/info/3061/politica-cookies-edatv> indicates the following:

“...3. HOW TO DISABLE THE USE OF COOKIES:

When it comes to cookies that are not mandatory for browsing the Website, they can be disabled in the Website settings. These settings are found in the footer of the Website. Additionally, all browsers allow changes to disable cookie settings.

The reason most browsers offer the ability to manage cookies is to obtain more precise control over privacy. These settings are located in the "options" or "preferences" menu of your browser. The links for each browser to disable cookies are as follows...”

d.- Regarding the information provided in the “Cookie Policy”:

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If you access the “Cookie Policy” through the link available at the bottom of the main page, the website redirects the user to a new page <https://edatv.news/info/3061/politica-cookies-edatv> where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the mechanisms available in the browser installed on the terminal device.

Conclusions.-

As conclusions, the following characteristics can be highlighted in the Cookie Policy of the website in question:

- Regarding the installation of cookies on the terminal device prior to consent, it has been verified that a first-party technical cookie, “didomi_token,” is used to store consent preferences.
- Regarding the cookie information banner present on the first layer (main page), it is noted that it generically identifies the purposes for which cookies will be used and whether they are first-party or also third-party.
- Regarding consent for the installation of cookies on the terminal device, it has been verified that it is not possible to reject cookies that are not technical or necessary unless the user registers and pays a monthly fee.
- Regarding the possibility of modifying the consent given for cookies at any time during web browsing, it has been verified that there is no mechanism that allows the modification of consent for the installation of cookies once given.
- Regarding the information about cookies provided in the “Cookie Policy,” it has been verified that it provides information about what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the mechanisms available in the installed browser.

SIXTH: There is no economic information about the company in question.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this

organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

On the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw their previously granted consent at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that this ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

In this case, it is not possible to modify the consent granted for the use of "non-technical or necessary" cookies at any time during web browsing, as there is no permanent link or mechanism that redirects the user to the control panel to manage their consent whenever they wish.

III

Unfulfilled Obligation

From the deficiency detected regarding the cookie policy on the website <https://edatv.news/>, that is, the impossibility of modifying consent at any time during web browsing when the user wishes to do so, it could imply on the part of the accused a violation of Article 22.2 of the LSSI, as it establishes the following:

"Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

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When technically possible and effective, the recipient's consent to accept data processing may be provided by using the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient."

IV.

Proposal and Graduation of the Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. The LSSI, in its Article 40, establishes the "graduation of the amount of sanctions", taking into account the following criteria: a) The existence of intent. b) The length of time during which the infringement has been committed. c) The recurrence of committing infringements of the same nature, when declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is appropriate to impose, for the infringement of Article 22.2 of the LSSI, an initial sanction of €2,000 (two thousand euros).

Therefore, in light of the above,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against entity EDA TV CONSULTING, S.L. with NIF: B88605266, owner of the website <https://edatv.news/> for the violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation.

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirector of Data Inspection during the investigation phase, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction of this file, 2,000 euros (two thousand euros).

FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity, EDA TV CONSULTING, S.L., granting it a hearing period of ten working days to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document. If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that is appropriate to impose in this procedure, equivalent in this case to 400 euros. With the application of this reduction, the sanction would be established at 1,600 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a reduction of 20% of the amount of it, equivalent in this case to 400 euros. With the application of this reduction, the sanction would be established at 1,600 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at 1,200 euros (one thousand two hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

If the voluntary payment of any of the amounts indicated above (1,600 euros or 1,200 euros) is chosen, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the

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Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Furthermore, it must send the proof of payment to the General Subdirector of Inspection to continue with the procedure in accordance with the amount deposited. The procedure will have a maximum duration of nine months from the date of the initiation agreement. After this period, if no resolution has been issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 43.2 of the LSSI. In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency.

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SECOND: On February 19, 2025, EDA TV proceeded to pay the sanction in the amount of 1,200.00 euros making use of the two reductions provided in the initiation agreement transcribed above, which implies the acknowledgment of responsibility concerning the facts referred to in the initiation agreement and its legal qualification.

THIRD: EDA TV has expressly waived any action or appeal in the administrative route against the sanction.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter

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LSSI) and according to the provisions of articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for the Protection of Data is competent to resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

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In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making a voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 1,200.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, EDA TV has proceeded to acknowledge responsibility and make a voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or appeal in the administrative route.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infractions and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 2,000.00 euros.

After EDA TV CONSULTING, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the aforementioned total by 40%, which results in a final amount of 1,200.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202414147, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to EDA TV CONSULTING, S.L.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or waiver of any action or appeal in the administrative route, this authority accepts the waiver expressly stated by

EDA TV CONSULTING, S.L., thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, considering the provisions of Article 90 of the LPACAP, since there is no possibility of any administrative appeal due to the express waiver, this resolution will be final and fully executable from the date of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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